The Information Technology Act, 2000

Technology, electronic records, signatures, cyber offences and intermediary framework

PROJECT LEGAL REFERENCE DOCUMENT

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Important use note

This project reference edition is prepared for software, AI, data, and academic-project implementation. It summarizes selected provisions and practical implementation implications. It is not an official certified copy, does not replace the current statute, subordinate legislation, notifications, case law, or professional legal advice.

Document metadata

Field	Value
Act number	21 of 2000
Enactment date	9 June 2000
Enforcement	17 October 2000
Primary ministry	Ministry of Electronics and Information Technology
Official source	India Code
Source version used	India Code PDF: it_act_2000_updated.pdf

Overview

The Act establishes legal recognition for electronic records and electronic signatures and provides a framework covering electronic governance, certifying authorities, compensation for certain computer-related damage, cyber offences, confidentiality/privacy, investigation, and intermediary liability. The official India Code text also contains the First and Second Schedules and notes omitted provisions.

Selected provisions and project relevance

Section 4

Legal recognition of electronic records

Electronic records can receive legal recognition where the statutory requirements are met. For a software project, preserve records in an auditable electronic form and define retention/integrity controls.

Section 5

Legal recognition of electronic signatures

Electronic signatures receive legal recognition subject to the Act and applicable requirements. Where signatures or approvals are used, identify the signature mechanism and preserve evidence of authentication.

Section 7

Retention of electronic records

The Act provides for retention of electronic records subject to statutory conditions. Project systems should define retention, retrieval, integrity, and access rules rather than treating database storage alone as sufficient.

Section 10A

Validity of contracts formed through electronic means

Contracts are not denied validity merely because proposal, acceptance, revocation, or related communications are electronic, subject to the provision and other applicable law.

Section 43

Penalty and compensation for specified computer damage

The section addresses unauthorized acts involving computer resources and related damage. Projects should implement authorization, access control, logging, backups, and incident controls.

Section 66

Computer-related offences

Certain acts involving computer resources become offences when the statutory conditions are satisfied. Security testing, access, and data handling should be performed with proper authorization.

Sections 66C-66E

Identity theft, personation and privacy-related offences

The Act contains offences relating to misuse of credentials, cheating by personation through computer resources, and certain privacy violations. Authentication, least privilege, and privacy-by-design controls are relevant.

Section 67 series

Specified prohibited electronic content

The Act contains offences concerning specified categories of obscene or sexually explicit electronic material, including material involving children. Content-processing systems should include appropriate safeguards and escalation procedures.

Section 70B

Indian Computer Emergency Response Team (CERT-In)

The Act establishes CERT-In as the national agency for cyber-incident response. Projects that may fall within applicable directions/rules should maintain incident identification, preservation, and reporting processes.

Section 72A

Disclosure of information in breach of lawful contract

The section addresses disclosure of information by a person who has lawful access under a contract in specified circumstances. Data-sharing arrangements should therefore clearly define confidentiality and permitted use.

Section 79

Intermediary liability framework

The Act provides a conditional exemption framework for intermediaries, subject to statutory requirements. Platform projects should map whether and how they fit the statutory definition and applicable due-diligence requirements.

Project implementation checklist

1. Maintain role-based access control and strong authentication for every administrative or privileged action.

2. Keep tamper-evident logs for logins, data access, changes, exports, approvals, and security incidents.

3. Define data retention and deletion rules, with documented reasons for each category of retained data.

4. Use authorization gates for security testing, scraping, penetration testing, and access to third-party systems.

5. Treat contracts, consent records, electronic approvals, and audit evidence as controlled project records.

6. For production deployment, review the applicable IT Rules, CERT-In directions, privacy/data-protection law, and sector-specific requirements in addition to the Act itself.

Suggested RAG / search queries

"What is the legal recognition of electronic records under Section 4?"

"What does Section 10A say about electronic contracts?"

"Which provisions concern identity theft and personation?"

"What project controls reduce unauthorized computer access risk?"

"What is the role of CERT-In under Section 70B?"

Source and verification

Primary source: India Code, the official Government of India legislative information portal. The source used for this reference edition is listed below. Verify the latest consolidated text and all applicable amendments, rules, notifications, and judgments before real-world reliance.

https://www.indiacode.nic.in/bitstream/123456789/13116/1/it_act_2000_updated.pdf

Reference prepared on 17 September 2026.

Project note: These documents are designed to be easy to index in a document/RAG pipeline. The section labels, summaries, and implementation notes are intended to support retrieval and system demonstrations; the underlying statute remains the authoritative legal source.